

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

Index No.:

Purchased:

-----X  
CASSANDRA MARRERO,

Plaintiff designates

Bronx County as the place of trial

Plaintiff,

The basis of the venue is where the  
tort arose and where the plaintiff  
resides

-against-

CITY OF NEW YORK, individually and in their official  
capacities as New York City police officers, HENRY  
ADAMES, UNDERCOVER OFFICER NO. 390, and  
JOHN or JANE DOE 1-10,

**SUMMONS**

Defendants.  
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**TO THE ABOVE-NAMED DEFENDANT:**

**YOU ARE HEREBY SUMMONED**, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York.  
August 9, 2019



**SIM & DEPAOLA, LLP**

By: Samuel C. DePaola, Esq.

*Attorneys for Plaintiff(s)*

42-40 Bell Boulevard, Suite 201

Bayside, New York 11361

(718) 281-0400

TO: CORPORATION COUNSEL  
OF THE CITY OF NEW YORK  
100 CHURCH STREET  
NEW YORK, NY 10007

HENRY ADAMES OF NARCB BX  
Shield Number 6473, Tax ID No. 941315  
1 POLICE PLAZA  
NEW YORK, NEW YORK 10038

UNDERCOVER OFFICER NO. 390  
1 POLICE PLAZA  
NEW YORK, NEW YORK 10038

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX-----X  
CASSANDRA MARRERO,

Plaintiff,

Index No.:

-against-

**VERIFIED COMPLAINT**CITY OF NEW YORK, individually and in their official  
capacities as New York City police officers, HENRY  
ADAMES, UNDERCOVER OFFICER NO. 390, and  
JOHN or JANE DOE 1-10,Defendants.  
-----X

Plaintiff, CASSANDRA MARRERO, by her attorneys, Sim & DePaola, LLP, for her  
complaint against the above Defendants, alleges as follows:

1. The claim arises from a March 6, 2018 incident in which defendants, acting under color of state law, unlawfully arrested and detained CASSANDRA MARRERO ("Ms. Marrero"). Plaintiff was subsequently charged with Criminal Possession of a Controlled Substance in the Seventh Degree, Criminal Sale of Marijuana, Criminal Possession of Marijuana and Unlawful Possession of Marijuana. As a result, Ms. Marrero was deprived of her liberty, and caused to sustain physical and emotional injuries. Ms. Marrero was wrongfully incarcerated for approximately two (2) days or approximately twenty (20) hours, until she was released, on or about March 7, 2018, after being arraigned. Ms. Marrero was maliciously prosecuted until her charges were dismissed on June 7, 2018 before the Hon. P. Gouldborne.

2. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court may deem just and proper.

**PARTIES**

3. Plaintiff CASSANDRA MARRERO ("Ms. Marrero") resides at 771 Jackson Avenue, Apt. 1A, Bronx, NY 10456.
4. The Defendant City of New York ("City") is a municipal corporation organized under the laws of the State of New York.
5. At all times relevant hereto, Defendant City, acting through the New York City Police Department ("NYPD") is responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
6. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
7. Defendant HENRY ADAMES ("Adames") was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Adames was, at all times relevant herein, a detective, Shield No. 6473 and Tax ID. No. 941315, of NARBBX, 1 Police Plaza, New York, New York, 10038. Defendant Adames is being sued in his individual and official capacities.

8. Defendant UNDERCOVER OFFICER NO. 390 (“UC 390”) was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Undercover Police Officer was, at all times relevant herein, a police officer, located at 1 Police Plaza, New York, New York, 10038. Defendant Undercover Police Officer is being sued in his individual and official capacities.
9. At all times relevant Defendants John or Jane Doe 1 through 10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff’s do not know the true names and/or tax registration numbers of Defendants John and Jane Doe 1 through 10 but is within knowledge of the defendants.
10. At all times relevant herein, Defendants John or Jane Doe 1 through 10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants John and Jane Doe 1 through 10 are being sued in their individual and official capacities.
11. At all times here mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
12. Within 90 days of accrual dates for these claims, Plaintiff timely filed a written notice of claim with the New York City Office of the Comptroller.
13. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.
14. This action and associated claims have been timely commenced within all applicable statutes of limitations.

**FACTUAL CHARGES**

15. On March 6, 2018, at approximately 4:50 P.M., Ms. Marrero was walking on the street in the vicinity of the 730 East 163<sup>rd</sup> Street, County of Bronx, State of New York.
16. On said date, time and location, Defendants, including Adames, unlawfully stopped Ms. Marrero without any probable cause or reasonable suspicion to do so, as plaintiff was not in violation of any laws.
17. Defendants, including Adames and UC 390, fabricated a narrative in which they alleged Ms. Marrero handed an individual a plastic bag containing marijuana which was later given to UC 390, when they knew such claim was untrue and a complete fabrication.
18. Then Defendants, including Adames, illegally searched Ms. Marrero without probable cause or justification to do so and with no contraband being recovered.
19. Ms. Marrero had not committed any crimes or violations of the law.
20. Then Defendants, including Adames, illegally placed handcuffs on Ms. Marrero without any probable cause or justification.
21. Defendants, including Adames, committed multiple assault and batteries to Ms. Marrero, including but not limited to, applying metal handcuffs in an excessively tight fashion, forcibly grabbing, pushing and shoving Ms. Marrero.
22. Defendants, including Adames, illegally questioned Ms. Marrero because they did not read Ms. Marrero her Miranda rights.
23. As a result of Defendants', including Adames' and UC 390's, knowingly and intentionally false statements and allegations, namely that Ms. Marrero acted in concert with another individual to illegally sell marijuana to UC 390, Ms. Marrero was falsely arrested under arrest number B18611268.

24. Defendant Adames was Ms. Marrero's arresting officer.
25. Defendant Adames falsely arrested Plaintiff alleging she was in criminal possession of a controlled substance and marijuana and that she illegally sold marijuana to UC 390.
26. Defendants Adames and UC 390 were fully aware that no controlled substance or marijuana was recovered or observed on Ms. Marrero's person, but knowingly and intentionally chose to state otherwise to justify and excuse an otherwise invalid arrest.
27. Ms. Marrero was never in actual, constructive or statutory possession of any controlled substance or marijuana, as no controlled substance or marijuana was found on her person.
28. Plaintiff did not commit any crimes or violations of the law.
29. Plaintiff was then unlawfully transported to a local precinct.
30. Later, Ms. Marrero was unlawfully sent to Central Booking for a crime she did not commit.
31. In Central Booking, Ms. Marrero was illegally fingerprinted and photographed.
32. Defendants, including Adames and UC 390, intentionally provided said false information to the Bronx County District Attorney's Office, so that a criminal prosecution would be initiated against Ms. Marrero, namely that she committed Criminal Possession of a Controlled Substance in the Seventh Degree, Criminal Sale of Marijuana, Criminal Possession of Marijuana and Unlawful Possession of Marijuana.
33. At no point did Defendants, including Adames and UC 390, ever observe Ms. Marrero commit any crime or offense.
34. At no point were the defendants, including Adames and UC 390, ever told by any witnesses that Ms. Marrero committed any crime or violation of the law.
35. Defendants, including Adames and UC 390, had no probable cause or reasonable suspicion to arrest, detain or stop Ms. Marrero.

36. Defendants, including Adames and UC 390, never possessed probable cause to believe a prosecution would succeed against Plaintiff, that Plaintiff was guilty of any crime.
37. Defendants, including Adames and UC 390, never possessed a legally issued arrest warrant for plaintiff's arrest.
38. Plaintiff, Ms. Marrero, was the target of derogatory and profane language that evinced clear discriminatory predilections on behalf of Defendants, including Adames and Undercover Police Officer.
39. Defendants, including Adames and UC 390, suppressed evidence and engaged in conduct undertaken in bad faith.
40. Defendants have displayed a pattern and practice of falsely alleging a controlled substance or marijuana to be found to justify otherwise unwarranted arrests.
41. Defendants have displayed a pattern and practice of fabricating a false narrative to arrest individuals present.
42. Plaintiff was wrongfully incarcerated for approximately two (2) days or approximately twenty (20) hours, until she was released on or about March 7, 2018.
43. Plaintiff was forced to return to court to appear on the false charges levied against her, until all charges were favorably terminated and dismissed on June 7, 2018.
44. During all of the events described, the Defendants, including Adames and UC 390, acted maliciously and with intent to injure Plaintiff.
45. Defendants Adames and UC 390 were fully aware that there was no probable cause to believe a prosecution would succeed against Ms. Marrero, because Defendants Adames and UC 390 knew that Ms. Marrero was never in possession of any controlled substance or marijuana and that she was an innocent woman.

46. At all times relevant hereto, Defendants, including Adames and UC 390, were involved in the decision to arrest Plaintiff without probable cause or failed to intervene when they observed others arresting Plaintiff without probable cause.
47. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have imposed or acquiesced to policies or customs within the NYPD that resulted in Plaintiff's arrest without probable cause.
48. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have failed to provide adequate training in the identification of probable cause or reasonable suspicion.
49. The instant arrest of Plaintiff without the presence of probable cause was so egregious as to amount to the deliberate indifference by the policy and decision makers within the NYPD and City of New York, because the need for enhanced training and supervision is obvious due to the clear lack of any probable cause to arrest and prosecute Plaintiff.
50. Upon information and belief, further details and factual allegations will become available after discovery is completed, as the current policies and customs of the NYPD and City of New York are within the exclusive knowledge of Defendants.
51. Upon information and belief, the personnel files and records of the individual officers involved in Plaintiff's arrest will reveal a history of Constitutional violations that will indicate that Defendant City knew, or should have known that the individual officers were unfit for employment as NYPD police officers and would be likely to commit Constitutional violations similar to the violations that were committed against Ms. Marrero.

52. As a direct and proximate result of the acts of the defendants, plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

**FIRST CAUSE OF ACTION**

False Arrest and False Imprisonment Under  
New York State Law

53. The above paragraphs are here incorporated by reference as though fully set forth.
54. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
55. Plaintiff was conscious of her confinement.
56. Plaintiff did not consent to her confinement.
57. Plaintiff's arrest and false imprisonment was not otherwise privileged.
58. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
59. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
60. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**SECOND CAUSE OF ACTION**

False Arrest and False Imprisonment Under  
42 U.S.C. § 1983 Against Individual Defendants

61. The above paragraphs are here incorporated by reference as though fully set forth.

62. The Defendants, acting under color of state law, violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
63. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
64. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.
65. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
66. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**THIRD CAUSE OF ACTION**

Assault and Battery Under  
New York State Law

67. The above paragraphs are here incorporated by reference as though fully set forth.
68. Defendants made plaintiff fear for her physical well-being and safety and placed her in apprehension of immediate harmful and/or offensive touching.
69. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered her without her consent.
70. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
71. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

72. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**FOURTH CAUSE OF ACTION**

Excessive Force Under  
42 U.S.C. § 1983 Against Individual Defendants

73. The above paragraphs are here incorporated by reference as though fully set forth.
74. The Defendants, acting under color of state law, violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.
75. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered her without her consent.
76. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
77. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**FIFTH CAUSE OF ACTION**

Malicious Prosecution Under  
New York State Law

78. The above paragraphs are here incorporated by reference as though fully set forth.
79. Defendants initiated the prosecution against Plaintiff.
80. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed against her.
81. Defendants acted with malice.

82. The prosecution was terminated in Plaintiff's favor when the criminal charges was dismissed and sealed.
83. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
84. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
85. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**SIXTH CAUSE OF ACTION**

Malicious Prosecution Under  
42 U.S.C. § 1983 Against Individual Defendants

86. The above paragraphs are here incorporated by reference as though fully set forth.
87. Defendants, acting under color of state law, initiated the prosecution against Plaintiff.
88. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed against her.
89. Defendants acted with malice.
90. The prosecution was terminated in Plaintiff's favor when all criminal charges against her were dismissed and sealed.
91. Accordingly, Defendants violated Plaintiff's Fourth Amendment rights.
92. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
93. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**SEVENTH CAUSE OF ACTION**Malicious Abuse of Process Under  
New York State Law

94. The above paragraphs are here incorporated by reference as though fully set forth.
95. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
96. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
97. Defendants intended to inflict substantial harm upon Plaintiff.
98. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
99. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
100. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
101. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**EIGHTH CAUSE OF ACTION**Malicious Abuse of Process Under  
42 U.S.C. § 1983 Against Individual Defendants

102. The above paragraphs are here incorporated by reference as though fully set forth.
103. Defendants, acting under color of state law, arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

104. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
105. Defendants intended to inflict substantial harm upon Plaintiff.
106. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
107. Defendants' actions deprived Plaintiff of her right to free from illegal searches and seizures, as well as her right not to be deprived of her liberty without due process of law.
108. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
109. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**NINTH CAUSE OF ACTION**

Failure to Intervene Under  
New York State Law

110. The above paragraphs are here incorporated by reference as though fully set forth.
111. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
112. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
113. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
114. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**TENTH CAUSE OF ACTION**

Failure to Intervene Under  
42 U.S.C. § 1983 Against Individual Defendants

115. The above paragraphs are here incorporated by reference as though fully set forth.
116. Those Defendants, acting under color of state law, that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
117. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.
118. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
119. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**ELEVENTH CAUSE OF ACTION**

Negligent Hiring, Retention and Supervision Under  
New York State Law

120. The above paragraphs are here incorporated by reference as though fully set forth.
121. Defendant City owed a duty of care to Plaintiff to adequately hire, retain and supervise its employee defendants.
122. Defendant City breached that duty of care.
123. Defendant City placed defendants in a position where they could inflict foreseeable harm.
124. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.

125. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.
126. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
127. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**TWELVTH CAUSE OF ACTION**

Municipal “*Monell*” Liability Under  
42 U.S.C. § 1983 Against Defendant City

128. The above paragraphs are here incorporated by reference as though fully set forth.
129. Defendant City, under color of state law, maintained a policy, custom or practice that caused Plaintiff to be deprived of her Constitutional right to free from illegal searches and seizures.
130. Defendant City’s illegal practice is so consistent and widespread that it constitutes a custom or usage of which a supervising policy maker must have been aware of.
131. Defendant City and its policymakers failed to provide adequate training or supervision to subordinates to such an extent that it is tantamount to their deliberate indifference towards the rights of those who come into contact with Defendant City’s employees.
132. Defendant City’s employees engaged in such egregious and flagrant violations of Plaintiff’s Constitutional rights that the need for enhanced supervision and training is obvious and therefore tantamount to a display of deliberate indifference by Defendant City and its policymakers towards the rights of individuals who come into contact with defendant City’s employees.

133. Defendant City's conduct violated Plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution.
134. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
135. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**WHEREFORE**, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
  - m) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
  - n) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988;
- Together with the costs and disbursements of this action

Dated: Bayside, New York  
August 9, 2019



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SIM & DEPAOLA, LLP  
By: Samuel C. DePaola, Esq.  
*Attorneys for Plaintiffs*  
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Bayside, NY 11361  
T: (718) 281-0400  
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## ATTORNEY VERIFICATION

I, **Samuel C. DePaola**, an attorney admitted to practice in the courts of New York State, state that I am a partner of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiffs, is because Plaintiffs reside outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York  
August 9, 2019

  
\_\_\_\_\_  
SAMUEL C. DEPAOLA, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

---

CASSANDRA MARRERO,

Plaintiff,

-against-

CITY OF NEW YORK, individually and in their official capacities as New York City police officers, HENRY ADAMES, UNDERCOVER OFFICER NO. 390, and JOHN or JANE DOE 1-10,

Defendants.

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**SUMMONS AND VERIFIED COMPLAINT**

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**SIM & DEPAOLA, LLP**

By: Samuel C. DePaola

*Attorneys for Plaintiff(s)*

42-40 Bell Boulevard, Suite 201

Bayside, NY 11361

Tel. (718) 281-0400

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To: CORPORATION COUNSEL OF NEW YORK

*Attorney(s) for Defendants*

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Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for